

Court No. - 3

Case :- WRIT - C No. - 19275 of 2017

Petitioner :- Jitendra Prasad Pandey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Chhaya Gupta, Sujeet Kumar

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Krishna Murari, J.

Hon'ble Ravindra Nath Kakkar, J.

Heard learned counsel for the parties.

Petitioner has approached this Court challenging the electricity bill cum notice dated 20.2.2017 requiring him to deposit a sum of Rs.12,60,725/- which includes the sum of Rs.12,690/- as charges for the current bill and the balance as outstanding arrears. Learned counsel for the petitioner submits that initially the bill raised was for a sum of Rs.30,50,462/- and on a representation being made, the same has been corrected showing the aforesaid amount.

It is further submitted that the connection was granted in the name of one Sri Radhey Shyam on the petrol pump. For a period of 16 years, no bill was raised and all of a sudden, a bill dated 31.10.2016 for a sum of Rs.30,00,000/- was raised which subsequently on an application made on behalf of the petitioner has been corrected to Rs.12,60,725/-. Learned counsel for the petitioner also points out that any demand of outstanding arrears after a period of two years unless the same is continuously reflected in monthly bill is barred by time in view of provision 6.15 of the Electricity Supply Code 2005 and a Division Bench judgment in the case of Satya Naraiyan Vs. U.P. Power Corporation Ltd. in writ petition no. 9090 of 2012 decided on 22.5.2013 at Lucknow Bench.

The issue requires scrutiny.

Sri Mehboob Ahmad who has accepted notice on behalf of respondent nos. 2 and 3 prays for and is allowed four weeks time to file counter affidavit. Petitioner will have two weeks thereafter for filing rejoinder affidavit.

List immediately after the expiry of the aforesaid period.

Considering this fact until further orders of this Court, the supply of electrical energy to the petitioner shall not be disconnected subject to the petitioner depositing the amount shown in the disputed bill for current charges and go on depositing the charges for consumption as and when they are raised. However, the recovery of the arrears shown in the disputed bill shall remain stayed.

Order Date :- 4.5.2017

S.Chaurasia

Court No. - 1

Case :- WRIT - C No. - 19275 of 2017

Petitioner :- Jitendra Prasad Pandey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Chhaya Gupta, Sujeet Kumar

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Govind Mathur, J.

Hon'ble Ashok Kumar, J.

List this petition after adjournment.

Order Date :- 13.12.2017

S.S.

(Ashok Kumar, J.)

(Govind Mathur, J.)

Court No. - 40

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Petitioner :- Jitendra Prasad Pandey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Chhaya Gupta, Sujeet Kumar

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard Sri Sunil Kumar Shukla, Advocate holding brief of Sri Sujeet Kumar, learned counsel for petitioner, Sri Mahboob Ahmad, learned counsel for respondent nos. 2 and 3 and learned Standing Counsel for respondent no. 1.

There are no recovery proceedings which can be said to be under challenge before this Court. The challenge is to the 'bill' of the Electricity Department whereby a demand has been raised from the petitioner. In such circumstances, we do not find this to be a writ petition relating to recovery of electricity dues, but an interim order passed on 4th May, 2017, treating it to be such, has entertained the writ petition.

What we find from the records is that the impugned 'bill' dated 20th February, 2017 is for Rs.12,60,625/- in respect of consumption of electricity by the petrol pump being run by the petitioner.

Learned counsel for the petitioner submits that the 'bill' in question is erroneous inasmuch as a demand has been raised for Rs.30,55,462/-. On an application of the petitioner the bill was corrected and the said amount was reduced.

Learned counsel for the petitioner further submits that even though correction was carried out, yet, the 'bill' is not payable inasmuch as a report had been called from the Junior Engineer, who has submitted the same on 16th March, 2017. In such circumstances, the respondents could not even raise the 'bill' without waiting for the report of Junior Engineer. The impugned bill has been in a hurry.

What we find is that since there is no recovery initiated as per the averments made in the writ petition, in that event, remedy of the petitioner lies in approaching the Executive Engineer in terms of Clause 6.5 of the Electricity Code, 2005, according to which the Executive Engineer can proceed to resolve the controversy with regard to the correctness or otherwise of the

impugned 'bill'.

It will be open to the petitioner to raise objection to the bill also taking into account the report of the Junior Engineer dated 16th March, 2017 and the Executive Engineer-respondent no. 3 shall proceed to pass appropriate order in accordance with the law within three weeks' from the date of production of certified copy of this order before him. The amount if any, sought to be recovered shall follow thereafter.

The writ petition stands **disposed of** with aforesaid observations/directions.

Order Date :- 17.4.2018

A. Verma